

Malay Sonkar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 April 2022 · WRIT-C No. 3127 of 2022 · **Writ disposed of without merits; petitioner relegated to a clause 6.8 objection, to be decided after hearing within a fixed time.**

HEADNOTE

A writ seeking to quash a recovery notice for alleged theft of electricity was disposed of without examining merits. On the licensee's statement, the consumer was given liberty to file an objection under clause 6.8 of the Electricity Supply Code, 2005 within three weeks; if filed, the assessing officer was to decide it in accordance with law within four weeks after a reasonable opportunity of hearing.

FACTUAL SUMMARY

Malay Sonkar filed a writ petition in the Allahabad High Court seeking to quash a recovery notice dated 31 July 2021 issued by respondent no.5 for alleged theft of electricity. Counsel for the distribution licensee (respondent nos.3, 5 and 6) stated on instructions that the petitioner may move an objection under clause 6.8 of the Electricity Supply Code, 2005, which would be considered and an appropriate order passed in accordance with law after hearing, within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery for alleged theft

HOLDING

Without expressing any opinion on the merits of a recovery notice for alleged theft of electricity, the writ was disposed of on the licensee's statement that the consumer may file an objection under clause 6.8 of the Electricity Supply Code, 2005. If the objection is submitted to the assessing officer (respondent no.5) within three weeks with a certified copy of the order, it shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. ¶ 1

FLAG The recovery was for alleged theft of electricity; the Court, on the licensee's statement, directed a clause 6.8 objection without deciding whether 6.8 is the correct path for theft.

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the theft-recovery notice was not decided on merits; the consumer was relegated to the clause 6.8 objection offered by the licensee, with a time-bound hearing and decision. ¶ 1

para-6.8-objection-alternate-remedy Liberty to submit a clause 6.8 objection within three weeks; if filed, respondent no.5 to decide it in accordance with law within four weeks after hearing. ¶ 1

assessment-6.8-alternate-remedy Challenge to the 31.07.2021 recovery notice was channelled into the statutory 6.8 objection rather than writ adjudication of the assessment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 31.07.2021 AND THE ALLEGATION OF THEFT OF ELECTRICITY

The Court expressly declined to express any opinion on the merits. ¶ 1

